

PURCHASE ORDER

To WAISL LIMITED First Floor, Wing D,301,adjacent to New Udaan Bhawan opposite to Terminal 3, DELHI-110037 Phone: 9777580334 Vendor Code : 324231 Contact Person: Tel No: Reg No: 07AAACW9002D1ZO Reg Type: Registered	Our Order No: 5000022081 Dated: 12.02.2026 Amendment No: Amendment Date: Amendment Reason : TIN (DVAT): Corp. Ident. No: U63033DL2006PLC146936 GST Reg No: 07AACCD3570F1ZW Your Ref. No: Contact Person: Amit Kumar Phone No: 8882991595 Email:AMIT.KUMAR6@GMRGROUP.IN
Description: Camera-Based Queue Management System Deployment, at T1 D2D Area, IGI Airport Delhi.	

Sir,

This has reference to your Proposal/Quotation Ref No: dtd. . In pursuance thereto we are pleased to issue this Purchase Order for Camera-Based Queue Management System Deployment, at T1 D2D Area, IGI Airport Delhi. at . The total cost of the work order will be **Rs XXXXXXXX (excluding tax)** as per the following Terms and Conditions and particular specifications.

Item No.	Material Code HSN/SAC code	Description	Order Qty	Unit	Price (INR)	Net Price (INR)
10	998313	One-Time Prices for KloudSpot Solution-	1	AU	x,xxx,xxx.xx	x,xxx,xxx.xx
<u>The item covers the following services:</u>						
	730000000374	SERV	x,xxx,xxx.xx	EA	1.00	x,xxx,xxx.xx
<u>Price Details:</u>						
Gross Price					x,xxx,xxx.xx	INR x,xxx,xxx.xx
Central GST					9.000	% x,xxx,xxx.xx
State GST					9.000	% x,xxx,xxx.xx
Total Net Value Incl. Tax (INR):						x,xxx,xxx.xx
20	998313	One-Time SITC Prices for Vision Controll	1	AU	x,xxx,xxx.xx	x,xxx,xxx.xx
<u>The item covers the following services:</u>						
	730000000374	SERV	x,xxx,xxx.xx	EA	1.00	x,xxx,xxx.xx
<u>Price Details:</u>						
Gross Price					x,xxx,xxx.xx	INR x,xxx,xxx.xx
Central GST					9.000	% x,xxx,xxx.xx
State GST					9.000	% x,xxx,xxx.xx
Total Net Value Incl. Tax (INR):						x,xxx,xxx.xx
30		One-Time SITC Prices	1	AU	x,xxx,xxx.xx	x,xxx,xxx.xx

Our Order No: 5000022081

Item No.	Material Code HSN/SAC code	Description	Order Qty	Unit	Price (INR)	Net Price (INR)
	998313	for CCTV Camera and				
The item covers the following services:						
	730000000374	SERV	x,xxx,xxx.xx	EA	1.00	x,xxx,xxx.xx
<u>Price Details:</u>						
Gross Price					x,xxx,xxx.xx	INR x,xxx,xxx.xx
Central GST					9.000	% x,xxx,xxx.xx
State GST					9.000	% x,xxx,xxx.xx
Total Net Value Incl. Tax (INR):						x,xxx,xxx.xx
40	998313	One-Time Prices for WAISL Program Manage	1	AU	x,xxx,xxx.xx	x,xxx,xxx.xx
The item covers the following services:						
	730000000374	SERV	x,xxx,xxx.xx	EA		x,xxx,xxx.xx
1.00 <u>Price Details:</u>						
Gross Price					x,xxx,xxx.xx	INR x,xxx,xxx.xx
Central GST					9.000	% x,xxx,xxx.xx
State GST					9.000	% x,xxx,xxx.xx
Total Net Value Incl. Tax (INR):						x,xxx,xxx.xx
Total Order Value in (INR):						x,xxx,xxx.xx

Total Order Value in (INR): XXXXXXXX (One crore two lakh fifty one thousand eight and seventy six paise only)

TERMS AND CONDITIONS

1. Scope of Work:

Camera-Based Queue Management System Deployment, at T1 D2D Area, IGI Airport Delhi.

Guarantee / Warranty Terms/Defect Liability Period / Latent Defect Liability Period:

Product Warranty: Camera warranty 5 years, Server warranty 5 years, rest items as per OEM standards.

12 months DLP from the date of handover.

Other terms & conditions, if any: As per SOW (Logic Document).

2. Price Basis:

FOR site.

3. Payment Terms:

Payment shall be released within 30 days upon receipt of invoice verified by DIAL.

Retention @ 5% of total basic order value shall be applicable till DLP period

Clause number 26 not applicable.

4. Delivery Address:

Material should be delivered to following Address.

M/s Delhi International Airport Limited
Central Store, DIAL
Near Airside Gate No 12.
Backside of Centaur Hotel.
IGI Airport, New Delhi-110037

Note: Material Receipt Timings: 09:30 HRS to 16:30 HRS

5. Date of Completion of the works:

Project Timeline

Lead Time to start: 2 weeks from PO receipt Estimated Project Duration: 16-20 weeks from the date of PO receipt by WAISL.

Refer "GMR Sustainable Procurement Policy" attached.

Data protection:

1.1. Any information or data provided by GMR to a *Consultant/ Contractor/ Supplier/Vendor (which shall include its agents, sub-contractors and partners etc.) or received by them from any other source (Their own observation or from third parties connected with this activity) as required directly or indirectly in the performance of this Agreement, shall remain at all times the property of GMR. The Consultant/ Contractor/ Supplier/Vendor shall take all precautions to keep and maintain all such information and data pertaining to GMR in strict confidence, so as to prevent any unauthorized access or disclosure, any corruption or loss, leakage, damage or destruction.

1.2. At any time during the term of this agreement or even after its termination / expiry, (or) as and when directed by GMR, the Consultant/ Contractor/ Supplier/Vendor and/ or all its agents and sub-contractors shall erase (from the systems or record) or return to GMR, all the information, data, documents, etc. provided by GMR and shall confirm the same to GMR through an undertaking or certifying to that effect. By signing this Contract, the Consultant/ Contractor/ Supplier/Vendor agrees to comply and initiate measures in place to ensure that its agents and sub-contractors also adhere at all times with the

provisions and obligations contained herein.

1.3. All information/ data acquired by Consultant/ Contractor/ Supplier/Vendor from GMR shall only be used for the purposes of this Agreement and shall not be further processed or disclosed without the prior written consent of authorized representative of GMR, to any third party.

1.4 The Consultant/ Contractor/ Supplier/Vendor shall indemnify GMR, its affiliates, and their respective officer(s), director(s), employee(s) and agents(s) and hold GMR harmless for any breach in relation to all claims, suits, causes of action, liability, loss, costs and damages, including reasonable attorney fees, arising out of or relating to any third party claim arising from breach (under this clause) by Consultant/ Contractor/ Supplier/Vendor of its obligations contained in this Section, except to the extent resulting from the acts or omissions of GMR in managing and protecting information and/or data of GMR.

1.5 The Consultant/ Contractor/ Supplier/Vendor shall immediately notify in writing to GMR about any unauthorized access/ transfer/leakage of GMR's information or data by any unauthorized third party or person, or becomes aware of any data/information or security breach incident either formally or informally. The Consultant/ Contractor/ Supplier/Vendor shall also be obliged to support GMR team/ representatives in conducting detailed investigation of such reported incident by providing required access to the details/ systems and also by organizing access to the details maintained by their associates to enable GMR to conduct the investigation and to protect their interests.

1.6 Either Party, agrees to accord his/her/its unconditional consent to the other for holding and processing information for the administrative and management purposes under this Agreement and in particular to the processing of any sensitive data or information as defined in the "Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011.

1.7 Any sensitive information or data shared by the either Party to the other, which fall under Rule 3 of Information technology (Reasonable Security Practices and Procedures and Sensitive Personal data or Information) Rules, 2011 shall not be disclosed or revealed to any outside or third party, without due permission and written approval of the Party disclosing such information or data.

1.8 The Consultant/ Contractor/ Supplier/Vendor acknowledges that failure to comply with the above requisitions, standards and appropriate governance of data and information can be deemed to be considered as breach of its obligations and covenants that may cause GMR irreparable damage for which only monetary compensation would not be adequate. The Consultant/ Contractor/ Supplier/Vendor agrees that, in the event of such breach or threatened breach, GMR shall also be entitled to seek equitable relief, including a restraining order, injunctive relief, specific performance and / or any other relief that may be available under appropriate provisions of law or in equity.

1.9 The payments released or due for release to the Consultant/ Contractor/ Supplier/Vendor will be subject to this provision of the Contract and any deviation to Clauses 1.1 to 1.8 above will result in recovery of the amount towards loss or damage to GMR as decided by GMR. Any disputes pertaining to this provision of Contract shall be resolved as per the Dispute resolution clause of this Contract.

6. Commencement of the Works:

Before commencing the Works, you shall ensure that prior approval is taken from Authorized Officer of DIAL.

The Works shall have to be carried out by you as per the directions of Authorized Officer of DIAL. The detailed drawings, specifications (if any) supplied by Authorized Officer of DIAL shall be read along with the specifications for the Works.

All passes, if required shall be obtained before the expected start of work. The supplier shall get in touch with Pass Sections of the DIAL within two days of receipt of the purchase order.

7. Billing & Taxes:

All Bills and accompanying documents should be raised and submitted in original; as per the Payment Terms, and should be accompanied by original copies of duly receipted/ certified Delivery Challan/ Work Progress or Completion Certificate, as applicable. No payment shall be released against any duplicate bills, work progress report or Completion Certificate or delivery challan. All applicable taxes such as VAT, Service tax/ WCT shall be mentioned separately in the invoice.

Note: Suppliers/Contractors to ensure submission of their GST details, in the attached GST

Annexure to this PO, immediately along with PO acknowledgement / Acceptance.

Goods and Services Tax

In terms of GST provisions regarding Input Tax Credit Availment conditions and **Notification No 49/2019-Central Tax dated 9th October 2019** and **Circular No. 123/42/2019- GST dated 11th November 2019 (F. No. CBEC - 20/06/14/2019 - GST)** and as amended from time to time the GST Input Tax Credit (ITC) availment has been restricted as specified in terms of sub-rule (4) of rule 36 of CGST Rules, 2017 **if there is a delay in filing GSTR 1 beyond due date, and ITC would not be available.** DIAL shall be downloading the GSTR 2A Report on or after the due date of filing GSTR 1 by suppliers (i.e. 11th of subsequent month for suppliers who file monthly return), for claiming ITC available for a particular month. The supplier shall file GSTR 1 and GSTR 3B within due dates to enable DIAL to avail ITC within stipulated timelines.

Therefore GSTR 1 must be filed on or before the due date by the Supplier, incorporating the invoice issued to DIAL with all the particulars correctly mentioned, in order to enable DIAL to claim GST ITC of the invoice issued to DIAL. In case of non-adherence/non-compliance DIAL shall be entitled to withhold sums due to the supplier and reserve the right to recover interest on capital paid by us due to non-compliance at supplier's end.

Tax refund

a) On account of change of law and introduction of the GST and in the event any tax/duty exemption is directly allowed to the supplier/seller/vendor/service provider or its vendors/sub-contractors and is thereby converted to a refund to the supplier/seller/vendor/service provider, then the supplier/seller/vendor/service provider shall be obligated within 30 working days, to adjust the amount so refunded to the extent applicable to DIAL's contract sum.

In the event the supplier/seller/vendor/service provider fails to comply with the aforesaid within 30 working days, then DIAL shall be within its right to adjust the refunded amount once known to DIAL, from any payment due by DIAL to the supplier/seller/vendor/service provider. However, if DIAL is unable to adjust the entire such amount for any reason then the supplier/seller/vendor/service provider shall be bound to immediately pay the unadjusted amount, as notified by DIAL, without any protest, delay or demur.

b) It is expressly agreed between the parties that they would provide all documents, challans, returns, certificates, etc. as may be reasonably required by the other party to support the claim for refund.

Right of adjustment in case of failure to comply with GST

Notwithstanding anything contrary contained herein, it is hereby agreed and understood by the supplier/seller/vendor/service provider that it shall be under an obligation to submit the requisite documentary evidence substantiating that the supplier/seller/vendor/service provider has complied with the requirements of GST provisions. It is clarified that in the event of failure to comply with the same, the payment of GST mentioned in the invoice including any interest, charges, penalty, etc. payable thereon by DIAL to the governmental authorities, shall be adjusted while releasing the payment by DIAL to the supplier/seller/vendor/service provider. However, if DIAL is unable to adjust the entire such amount for any reason, then the supplier/seller/vendor/service provider shall be bound to immediately pay the unadjusted amount, as notified by DIAL, without any protest, delay or demur.

Indemnification

The supplier/seller/vendor/service provider shall protect, defend, indemnify and hold harmless DIAL, its agents and employees, during the term and thereafter, from and against:

i. Any statutory liability including but not limited to any claims raised, interest, sanctions, penalties imposed by the governmental authority or suffered by DIAL due to the non-compliance of the supplier/seller/vendor/service provider of the GST provisions.

ii. Any and all losses arising from or incurred due to non-compliance by the supplier/seller/vendor/service provider of any GST provisions.

8. Bill address and submission:

All invoices related to this purchase order must be addressed to "Delhi International Airport Ltd, New Udaan Bhawan, Opp. Terminal 3, IGI Airport, New Delhi -110037" and invoice should be submitted to/at "Bill Inward Desk" located in this address along other relevant documents, required as per the "Check list for Vendor " attached with the Purchase Order.

Note: Suppliers/Contractors to ensure submission of Invoices "maximum within 15 days" of date of Invoice(s) to/at "Bill Inward Desk". Bill submission beyond 15 days from the date of Invoice(s) will not be accepted.

9. Tax Deduction at Source:

All payments to be made under this purchase order would be subject to deduction of tax at source, if any, as per the applicable law. In case any deduction is made from the bill, DIAL would provide appropriate tax deduction certificate upon request. Please indicate your PAN number / Works Contract registration number/ Service Tax registration number, in all your bills.

Vendor shall intimate the details of Lower or No Tax Deduction Certificates (hereinafter referred as LTDC) including Revised LTDC, if any obtained by the Vendor in the name of DIAL as issued by Income Tax Department, within 5 days from the date of receipt of certificate. In case of delay or no intimation to DIAL in providing the LTDC, TDS shall be deducted and deposited as per the normal rates as applicable under the provisions of Income Tax Act, 1961 and DIAL shall not be responsible for any claim of any whatsoever nature filed by the vendor on account of LTDC

10. Liquidated Damages:

Standard @ 0.5 % for per week of delay; however, at most 5 % of the overall contract/order value.

11. Guarantee Period/Defect Liability Period:

12. Dispute Resolution:

12.1 Any dispute, controversy or claim ("**Dispute**") arising out of, relating to, or in connection with this purchase order, termination or validity hereof, shall initially be resolved by amicable negotiations between the parties; and if not resolved through such negotiations the same shall be referred for arbitration to a sole arbitrator to be appointed by the Managing Director of DIAL or his nominee. The award passed by the Sole Arbitrator shall be final and binding on the parties. The arbitration shall be conducted under the Arbitration and Conciliation Act 1996 (the "**Arbitration Rules**") as amended time to time. The venue of arbitration shall be New Delhi, India and it shall be conducted in the English language.

12.2 During the arbitration, the parties shall continue to fulfill their respective obligations under this purchase order.

12.3 The arbitral award shall be in writing and shall be final and binding on the parties concerned.

12.4 This purchase order shall be governed by the laws of India. In respect of all matters arising out or relating to this purchase order, the courts at New Delhi shall have exclusive jurisdiction to the exclusion of all other courts.

13. Compliance With Statutes and Statutory Declaration

13.1 You shall obtain requisite license from the licensing authority under Contract Labour (R&A) Act.1970, according to employee or labour engaged by you and get the aforementioned license renewed from time to time as and when due from the appropriate authority and shall keep valid and produce the same when called upon to do so by DIAL.

13.2 It is hereby declared by you that you are covered under EPF & MP Act and ESI Act. You hereby undertake and agree to deduct and remit, regularly, as required by law, the requisite contribution towards EPF & ESI in the state treasury, bank as the case may be and produce the relevant challans, returns and receipts for inspection and records as and when required by the DIAL.

13.3 You hereby undertake to fully comply with the provision of Contract Labour (R&A) Act 1970 and the

rules made there under and EPF & MP Act 1951, ESI Act 1948, Minimum Wages Act 1948 and such other applicable laws including laws applicable to the labour employed by you for the completion of the Works.

14. Compliance With the Operation, Management and Development Agreement (OMDA).

It is understood and agreed by you that the Delhi International Airport Ltd. has entered into the OMDA dated 4th April, 2006 with the Airports Authority of India [AAI] and as per the terms of the OMDA, the AAI has a right, upon the termination of OMDA, to acquire the land, buildings, structures and other assets at IGI Airport. In the event of AAI exercising such right for any reason whatsoever, during the term of this purchase order (including any renewals thereof), all the rights and obligations of DIAL under this Agreement shall be automatically assigned to the AAI or such other person as AAI may nominate in this regard) without the need of any further action of the Parties. You are further deemed expressly to understand that AAI has the right to acquire, in accordance with the provisions of OMDA, any and all buildings, structures and other assets.

15. Variation:

16. General Requirements:

16.1 The area where the Work is executed will be properly maintained by you. All debris will be cleared by you on a regular basis at your own cost. In the event you do not remove the whole or any part of debris within a period of 2 (Two) days then DIAL shall remove such debris and deduct from your bill the cost incurred for such removal of debris.

16.2 Prior approval from the Authorized Officer of DIAL shall be obtained by you before mobilizing the material to the site. DIAL shall endeavour to provide you the required permission /passes /permits as applicable for the execution of the Works provided that you shall comply with all applicable rules, regulations, laws and instructions of appropriate authorities including DIAL.

16.3 You shall adhere to all rules and regulations of the IGI Airport during the execution of the Works.

16.4 You shall not sublet or assign the Works to anybody without written permission from DIAL.

16.5 You shall ensure that no loss or damage is caused to the IGI Airport or any property belonging to the IGI Airport during the execution of the Works and shall fully compensate DIAL in the event of any such loss or damage.

16.6 You shall conduct safety drills strictly on daily basis to avoid any accidents.

16.7 Background Verification:

The Contractor shall ensure background verification of its Personnel(s), engaged for and in connection with the Services on their joining the Contractor. The Contractor shall also conduct the said background verification on annual basis at its cost and responsibilities. The Contractor shall also arrange for police verification of Personnel(s) and on request of DIAL shall provide such background & police verification reports of any/all of the Personnel(s) with DIAL. The Contractor shall also ensure that a proper training is imparted to the Personnel(s) so that they work in ethical and legal manner and meet service quality standard.

The Contractor agrees and undertakes to fully comply with all the Applicable Laws in relation to any Personnel(s) engaged by it for provisioning of Service at the Airport.

17. Safety, Health & Environment:

17.1 In case the Works are executed in the operation area, a work permit is required to be obtained from the User Deptt prior to start the Works in operational area as per the format issued by DIAL.

17.2 You are required to provide the high visibility jackets to your workers without which they will not be allowed to enter the operational area to execute the Works.

17.3 You shall ensure that all safety precautions are taken during execution of Works and safety rules/laws/instructions issued by the appropriate authority and/ or DIAL shall be strictly complied with. You shall indemnify and keep on indemnifying DIAL for any loss, damage or cost that may arise/ be imposed on DIAL on this account.

17.4 The contractor shall be responsible for conducting their activities in IGIA premises in an environmentally responsible and eco-friendly manner, thereby complying with O&M standards of OMDA. They shall prevent and minimize environment pollution, induce healthy work practices within IGIA premises and shall adopt best environment management practices during their course of work. Contractor

shall follow the environment management guidelines and shall be responsible for the waste & debris disposal in an environmentally safe manner.

17.5 DIAL operates Safety Management System (SMS) as per requirements mentioned in DGCA CAR Section 1, Series C, Part 1 and is also certified for ISO 45001:2018 OH&SMS. It is the responsibility of the stakeholders / contractors and their sub-contractors to comply with the requirements of DGCA SMS and ISO45001:2018 while working at IGI Airport and same will be audited by DIAL

18. Material/Plants/Equipments at Site:

Materials/resources will be stored at the premises entirely at your risk and cost. All of the materials shall be insured against fire and theft. You shall indemnify DIAL from this risk including risk of loss or damage to materials, site, resources or any property.

19. Utility Charges:

20. Insurance

20.1 You shall obtain and possess, as a condition precedent to the commencement of the Works under this purchase order, from such insurer as may be approved by DIAL, a policy or policies of insurance indemnifying You and DIAL (including for this purpose every employee/ agent etc. thereof) from and against all liabilities arising out of or in connection with:

- a) any negligence, error, omission, breach of contract or default of you, or your employees, agents in the performance of the Works; and
- b) any loss, cost, expense, liability, action, demand, claim or proceeding in respect of the personal injury to or death of any person or injury including claims under Workmen's Compensation Act, or damage to any property, arising out of any negligence, act, error, omission, breach of contract or default by you or any of your employees, agents in the performance of this purchase order.

20.2 Upon the request of DIAL, You shall produce for inspection the cover note or policy of the insurance and such evidence as DIAL may reasonably require.

21. Right to Suspend or Terminate Works:

21.1 DIAL reserves the right to immediately suspend the Works or to terminate this purchase order/ agreement if, in the opinion of DIAL, serious harm would otherwise be caused to any person, any property or to DIAL's operations due to the acts or omissions committed by you or committed on your behalf by your agents, sub-contractors or persons employed by you. In such event DIAL shall be entitled, at its sole option to engage the services of another contractor for completion of the Works.

21.2 In the event you fail to perform any of your obligations, or commit breach of any terms and conditions under this Agreement, DIAL may terminate the Agreement and all your rights hereunder shall be ended. Termination shall be effective on the date that DIAL specifies in its written notice. No further Works shall be undertaken by you after specified date of termination.

21.3 DIAL may terminate this Agreement at any time by giving you at least one (1) calendar month written notice of such termination.

21.4 In the event of termination by DIAL, you shall be paid such amount as is appropriate and payable for the part of the Works under this contract, up to the date of termination, that have been performed to the satisfaction of DIAL.

22. Quality of Work:

Quality of materials and workmanship should be of International Standards and should comply with latest applicable specifications code and as per drawings and specifications issued by DIAL or its Authorized Officer. Payment shall be subject to the quality of Works and material. DIAL or its Authorized Officer in its sole discretion would decide regarding the quality of Works.

23. Inspection and Completion of the Works:

23.1 DIAL may nominate any person or employee as an Authorized Officer who shall represent DIAL for the purposes specified under the provisions of this purchase order [referred to as the "Authorized Officer"]. The Authorized Officer shall have full power to inspect drawings of any portion of the Works,

examine the materials and/ or the workmanship of the Works at any point during the execution of the Works.

23.2 Final Inspection and acceptance of the Works shall be carried out by Authorized Officer of DIAL after the same are intimated to have been completed by you, and shall be conclusive except as regards latent defects, poor workmanship or gross mistakes, and your warranty obligations. Pursuant to the final inspection, DIAL or its Authorized Officer in its sole discretion would decide the completion of Works and issue the completion certificate ["Completion Certificate"].

24. Indemnity:

You hereby agree to fully indemnify and keep indemnified DIAL, its employees, agents, directors and officers against any loss, damage or injury caused to any person resulting from the violation of any statute, ordinance or regulation by you or any of your agents, employees, officers. In addition, you also agree to indemnify, defend and hold harmless DIAL from and against any and all claims, liabilities, losses, costs or damages arising out of:

- a. breach of any of your obligations hereunder,
- b. breach of any Applicable Law(s), any omission, commission or deficiency in execution of the Services hereunder, by you.
- c. Any warranty, representation or statement you have made or may make to a third party in connection with the Services provided hereunder, and/or
- d. the Services performed by you hereunder.

25. Enforceability and Binding:

25.1 This purchase order binds and benefits the parties and their successors in interest, heirs, beneficiaries, legal representatives and assigns.

25.2 The un-enforceability, invalidity or illegality of a provision hereof does not affect or impair any other provision or render it unenforceable, invalid or illegal.

26. PBG/Security Deposit:

26.1 The Supplier shall furnish within 10 days of this order, a Performance Bank Guarantee for an amount equivalent to 10% of the Contract Sum as per the standard format of DIAL from a scheduled bank having its branch in Delhi and payable in favour of Delhi International Airport Limited. The said Bank Guarantee shall be valid for a period of one month after the expiry of Defects Liability Period/ Warranty Period whichever is later.

26.2 The Provision of Performance Bank Guarantee to be provided by supplier in accordance with this clause shall be a condition precedent to any payment by DIAL.

Law clause # In the event of a change in the taxes & duties, post signing of contract, the supplier and GMR agree to renegotiate the contract price such that the net impact of the change in taxes & duties gets factored in the price.

To this end, the incidence of any cost increase / benefit of cost reduction, on account of change in taxes & duties, shall be passed on to the buyer.

Tax exclusive contract # the contract value is exclusive of all applicable Indirect taxes, levies, duties, cess and surcharges. Any Indirect tax (such as GST or any other tax) will be charged and recovered over and above the contract price.

Tax inclusive contract # the contract value is inclusive of all applicable Indirect taxes, levies, duties, cess and surcharges (such as GST or any other tax as applicable on date of signing of contract).

27. Force Majeure

27.1 The Parties shall be not considered in default in the performance of its obligations hereunder, or be liable in damages or otherwise for any failure or delay in performance which is due to causes beyond its control and without its fault or negligence such as fire, explosion, flood or other natural catastrophe, civil disturbance, riot or armed conflict, pandemic/epidemic, Act of God, etc, (#ForceMajeure Event#).

27.2 The Party affected by an excusable delay will promptly provide written notice to the other Party, explaining in detail the full particulars and expected duration of the excusable delay, and will use its best efforts to remedy the delay if it can be remedied. The Parties shall continue to perform such of its obligations which are not affected by the Force Majeure Event and which are capable of being performed in accordance with this Purchase Order. If Contractor's performance of Works is delayed, DIAL may cancel Works scheduled during the excusable delay period or elect to extend the period of performance to cover the period of delay caused by the excusable delay. If performance of any Works is delayed for more than 30 days, DIAL may, without liability, cancel all or any part of this Purchase Order.

28. Variation / Changes:

28.1 DIAL may at any time by written notice (including upon occurrence of a Force Majeure Event) make changes within the general scope of this Purchase Order in any one or more of the following:

- (i) Change in the services;
- (ii) description of material /Equipment/services
- (iii) time of delivery/time of services
- (iv) Place of Delivery/services
- (v) method of shipping and packing (if applicable)/rendering services
- (vi) place of inspection, delivery or acceptance
- (vii) quantities and schedules, etc.

28.2 If any such change causes any increase or decrease in the cost of or time required for performance of any part of work under this Purchase Order, an equitable adjustment in the Purchase Order price and/or delivery schedule shall be made as per prior written approval of DIAL.

28.3 The Contractor shall implement the changes in the scope of the work or services, as the case may be, accordingly within 15 (fifteen) days from the date of such written notice from DIAL.

SUPPLIER CODE OF CONDUCT & BUSINESS ETHICS

This Supplier Code of Conduct and Business Ethics ("Code") has been formulated by GMR Group ("GMR") based upon the set of 'Values and Beliefs' and business practices that GMR follows. GMR values the relationship that it shares with all its vendors/ suppliers /service providers ("Suppliers") and believes in dealing with them in a fair and transparent manner. Similarly, GMR expects its Suppliers to comply with the terms set forth herein and also to ensure that there is transparency in their dealings in all their activities and sites worldwide.

1. Ethics and Integrity

In order to maintain high standards of social responsibility, all Suppliers are expected to conduct their business in an ethical manner and act with integrity.

a. Bribery and Corruption

The Supplier hereby warrant that, they will not, either themselves or through contractors or sub-contractors or through their agents/representatives, offer, promise or make any payment, gift, to any of GMR's employees, government officials or use other means to obtain an undue or improper advantage in a manner contrary to applicable laws (whether applicable in the place that the Supplier is situated in or elsewhere) and that, they have no knowledge that other persons who share a working relation with the Supplier's will, for the purpose of obtaining or facilitating the performance of, the contracts entered into between GMR and the Supplier's or such other connected contracts. Supplier shall uphold fair business standards in advertising, sales, and competition. Nothing in this Code shall however render GMR liable to reimburse the Suppliers' agents or their associates for any such consideration given or promised or for any consequences arising out of such action that is violative of the applicable laws or involves using corruptive measures.

b. Integrity

Supplier warrant that, the Suppliers and / or their contractors and / or sub-contractors and / or agents / representatives maintain high degree of integrity during the course of their dealings with GMR. If it is discovered at any time by GMR that any business/contract whether directly/indirectly connected to the contracts was procured by playing fraud or by misrepresentation or suppression of material facts, the contract entered into between GMR and Supplier shall be voidable at the sole option of the relevant entity of GMR. For avoidance of doubts, no rights shall accrue to the Suppliers in relation to such business/ contract and GMR or any entity thereof shall not have or incur any obligation in respect thereof. If such acts of the Suppliers result in defaming GMR or results in third party claims or actions being brought against GMR, then in such case, the supplier shall be required to indemnify GMR from and against any and all losses or damages suffered by GMR.

c. Conflict of Interest

Supplier' warrant that they shall not enter into a financial or any other relationship with a GMR employee that creates any actual or potential conflict of interest for GMR. For the purpose of this Code , a conflict of interest arises when material personal interests of the GMR employee are inconsistent with the responsibilities of his/her position with GMR. If any such conflicts are present, the same shall be disclosed and approved in advance by GMR management.

2. Labour Laws and Human Rights

Supplier are expected to protect the human rights of their employees/ workers and to treat them with dignity and respect and in this regard, the Supplier warrant that, in all of their activities, Supplier shall operate in full compliance with the laws, rules, and regulations of the countries in which they operate and shall ensure not to use any form of forced, bonded, indentured, or child labour.

a. Child labour

Suppliers shall not employ/encourage employment of children, falling under such age group that is prohibited from being employed by the applicable law, for providing of services either internally or outside the premises of the Suppliers.

b. Forced labour

Suppliers shall not use forced Labour. Supplier shall not force/coerce the employees/workers to work or demand services from the employees/workers under the threat of some sort of punishment especially in cases where, the employees/workers have not undertaken voluntarily to work for the Suppliers. All the services being provided by the Suppliers' employees/workers must be voluntary and the employees/workers shall be free to leave the work or terminate the employment with reasonable notice. Suppliers shall further ensure that, contracts for both direct and contract workers clearly convey the conditions of employment in a language understood by the employees/workers of the Suppliers. Where Suppliers shall be responsible for payment of all fees and expenses, the Suppliers shall make the required payment to their employees/workers.

c. Fair Treatment

Suppliers shall provide a workplace free from hard inhuman treatment, or even the threat of any such treatment, any sexual harassment, sexual abuse, corporal punishment or other enforcement measures that compromise the individual's physical or mental integrity. Suppliers shall not threaten their employees/workers with or subject them to harsh or inhumane treatment, including sexual harassment, sexual abuse, corporal punishment, mental coercion, physical coercion, verbal abuse or unreasonable restrictions on entering or exiting company-provided facilities.

d. Anti-discrimination

Suppliers shall provide their employees/ workers with a workplace free from harassment and/or deliberate discrimination or exclusion of preference made particularly on the basis of race, national origin, skin color, language, religion, caste, political affiliations, gender, gender identity, sexual orientation, marital status, age, disability, pregnancy and related medical conditions, military or veteran status, or on any other basis prohibited by applicable law.

e. Health and Safety

Supplier shall provide a safe and healthy working environment that poses no risk to health of the employees/workers working at their sites and ensure compliance with local and national regulations. Suppliers shall commit to creating safe working conditions and a healthy work environment for all of their workers.

f. Minimum Wages and Other Employee Benefits

Suppliers must pay the minimum salaries and employment benefits that are at least equal to the normal local salary or in compliance with minimum wages required by the applicable laws and regulations and provide all legally mandated benefits and satisfy all applicable employment laws.

3. Environment Protection

The Suppliers shall comply with all the applicable legal requirements, as well as with any existing industry standards and guidelines regarding the environment and sustainability, but at the very least (i.e. in the event that the legal requirements and/or any industry standards and/or guidelines are less stringent than the requirements below or do not exist at all) with the following requirement:

a) Resource Conservation and Emissions

Suppliers will use raw materials and natural resources in a responsible and economical manner and make every effort to reduce the consumption of energy (electricity, heating), water, and fuel by encouraging practices such as the modification of production, maintenance and facility processes, material substitution, conservation, recycling and material re-utilization, and further shall try to, reduce any associated emissions, try to use environment-friendly means of transport.

b) Hazardous Substances

Suppliers shall identify and manage substances that pose a hazard if released to the environment and comply with Applicable Laws and regulations for recycling and disposal. Suppliers shall ensure the safe handling, movement, storage, use, recycling and/or reuse and environment-friendly disposal of such substances, in their operations.

c) Improvement Objectives

Suppliers shall operate a systematic process of planning, training, implementation, monitoring and evaluation for review of the impact caused on the environment. Suppliers shall endeavour to use new progressive environmental technologies that lead to measurable improvements in terms of environmental impact (e.g. climate change).

4. Management Systems

Suppliers shall adopt or establish a management system designed to ensure/ facilitate compliance with the Code and applicable laws and regulations, identify and mitigate related operational risks, and facilitate continuous improvement. The management systems elements should include the following elements:

a) Documentation

Suppliers must maintain and urge their subcontractors to maintain the appropriate records necessary to demonstrate conformance and compliance with applicable laws and regulations and the principles and expectations specified in the Code.

b) Audits

Suppliers will use periodic self-evaluation or such other auditing procedures to ensure conformity to applicable laws and regulations and regulations and terms specified in this Code.

c) Implementation plans and Corrective Action Process

Suppliers shall have processes in place to make corrections or to address any deficiencies or non-compliances herein.

5. Usage of GMR Logo and Brand

Suppliers shall not use GMR name, logo and trademark for any which purpose without specific authorization by GMR. In case the Suppliers fail to adhere to the requirements specified in this clause, GMR shall have the option of terminating the contracts entered into with such Suppliers and seek such relief including claim/s for compensation or damages as are available to it under applicable laws.

6. Confidentiality

The Suppliers shall not pass any confidential information that belongs to GMR to any third party unless otherwise authorized by GMR or is made available to the Suppliers by GMR.

7. Reporting Concerns

The conduct expected from the Suppliers and compliance with the same in accordance with this Code is critical to the principles GMR believes in and the way it conducts its business.

Whistle Blower facility: If you have any complaints about compliance or ethics issues while working for or with GMR or want to report illegal or unethical activities, you may address the same to contact numbers below.

Whistle Blower facility: The supplier/ vendor shall give adequate publicity to the Whistle blower program of GMR at the project site, in order to facilitate any of their employees or persons connected with the business to raise concerns to the Ethics Helpline.

- a) Phone: Toll Free Number, 1800 1020 467, operational from 24 hours on all working days of Operator and by selecting an appropriate language option.
- b) Sending FAX by choosing option 2 after dialing the above number
- c) Email # gmr@ethicshelpline.in
- d) Postal mail to PO Box No 71, DLF Phase 1, Qutub Enclave, Gurgaon, 122002
- e) Web Portal: www.in.kpmg.com/ethicshelpline

No communication shall be encouraged to any other authority / external sources.

AGENCY/CONTRACTOR/SUB-CONTRACTOR/SERVICE-PROVIDERS:-COMPLIANCE REQUIREMENT WITH THE #SAXUAL HARASSMENT OFWOMEN AT WORK PLACE (PREVENTION, PROHIBITION AND REDRESSAL) ACT 2013#:

1. The Agency/Contractor/Sub-contractor shall have in place a robust policy, process and measures to address the cases of sexual harassment. The policy must be in compliance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act 2013, and as such ,must have an Internal Complaints Committee presided over by a woman employee at a senior level. In the event of occurrence of any sexual harassment case, the Agency/Contractor/Sub-contractor shall take the matter to its logical conclusion, and in the process, it shall use its best endeavors to provide emotional, legal, medical and financial support to its aggrieved woman employee in accordance with the best practices followed in the industry. The Agency/Contractor/Sub-contractor shall reimburse to GMR group, if any such expenses are incurred by GMR group in that regard against reasonable documentary evidence.

2. The Agency/Contractor/Sub-contractor shall, at all times and during all stages of the legal process (viz., investigation, prosecution and appeal, if any), keep GMR group and its management informed and updated of all sexual harassment cases in which allegations of sexual harassments have been made by/against its employees.

Our Order No: 5000022081

Thanking you

Yours faithfully

For Delhi International Airport Ltd.

Authorized Signatory

Note:of Terms & Conditions are not Applicable



Checklist for Vendor

Please select Y/N

- | | | |
|------|---|---------|
| 1.1 | "Invoice should be in the name of Billing Company as per Purchase / Service Order-
Invoice addressed to GMR GROUP (not acceptable)" | [Y / N] |
| 1.2 | Correct address of Billing Company to be mention on the invoice | [Y / N] |
| 1.3 | Description of Service & Service/ Purchase order number should be mentioned on the invoice | [Y / N] |
| 1.4 | Should have invoice number, PAN NO, CST/LST No, Service Tax Assesse Code, Date and amount in words and figures wherever available. | [Y / N] |
| 1.5 | Billing period wherever applicable | [Y / N] |
| 1.6 | Service Tax Suffered invoices - Service Tax, Education Cess and Secondary & Higher Education Cess to be shown separately in invoice. | [Y / N] |
| 1.7 | PAN, TIN & service tax registration copy should be attached wherever applicable - First time and if and when changed. | [Y / N] |
| 1.8 | Delivery challan in Original to be submitted | [Y / N] |
| 1.9 | For Transport invoices customer signature in the duty slip is a must | [Y / N] |
| 1.10 | Invoice should be signed by the authorised signatory | [Y / N] |
| 1.11 | Work completion certificate / Installation Report from ordering customer | [Y / N] |
| 1.12 | IT declaration form for proprietary entity - Only first time | [Y / N] |
| 1.13 | Service tax category* | [Y / N] |

2 Additional Documents for Manpower Services

- | | | |
|------|---|---------|
| 2.1 | Undertaking on Contractors Letter Head. | [Y / N] |
| 2.2 | Copy of Attendance Sheet should be in Form - XVI. (Manual) | [Y / N] |
| 2.3 | Copy of Wage Sheet should be in Form - XVII . (Manual) | [Y / N] |
| 2.4 | Copy of ESIC Challan | [Y / N] |
| 2.5 | Copy of EPF Challan | [Y / N] |
| 2.6 | ESIC & EPF Challan's Bifurcation on Contractors Letter Head if Combined. | [Y / N] |
| 2.7 | ESIC & EPF Code of the Employees on Contractors Letter Head. | [Y / N] |
| 2.8 | Copy of Form-7 (Regulation -32) under ESIC Act. (Monthly basis) | [Y / N] |
| 2.9 | Payment as per work order/Minimum Wage. | [Y / N] |
| 2.10 | Copy of PF Annual Return (One time in the Year) | [Y / N] |
| 2.11 | Copy of Monthly Return in Form-12A, 5 & 10. (Monthly basis) | [Y / N] |
| 2.12 | Copy of ESIC Half yearly Return. | [Y / N] |
| 2.13 | Attendance & Wage sheet should be certified by Site Incharge with Name and Designation. | [Y / N] |
| 2.14 | All documents should be self attested by the contractors with Rubber stamp. | [Y / N] |
| 2.15 | Copy of ESIC & EPF Coverage letter - First Time | [Y / N] |
| 2.16 | Copy of Labour Licence if applicable - for our establishments | [Y / N] |
| 2.17 | Indemnity Bond if Required | [Y / N] |
| 2.18 | Bifurcation of Bill amount with Labour Cost & Certified by user dept. HOD | [Y / N] |
| 2.19 | FORM - XIX)Wage Slip | [Y / N] |
| 2.20 | Form - XX) Register of Deductions for Damage of Loss | [Y / N] |
| 2.21 | FORM - XXI)Register of Fines | [Y / N] |
| 2.22 | FORM - XXII)Register of Advances | [Y / N] |
| 2.23 | FORM - XXIII)Register of Overtime | [Y / N] |
| 2.24 | FORM - XIII) Workmen register | [Y / N] |
| 2.25 | FORM - XXIV) Return to be sent by the Contractor to the Licensing Officer | [Y / N] |
| 2.26 | FORM - XXV) Annual Return of Principal Employer to be sent to the Registering Officer | [Y / N] |

3 In case of Imports, additional documents to be submitted

- | | | |
|-----|-----------------------|---------|
| 3.1 | Bill of Entry | [Y / N] |
| 3.2 | Certificate of Origin | [Y / N] |
| 3.3 | Insurance Certificate | [Y / N] |

Checklist for Vendor

Please select Y/N

3.4	Packing List	[Y / N]
3.5	Inspection Certificate	[Y / N]
3.6	Bill of Lading/Airway Bill	[Y / N]
4	Additional Documents for International Payments	
4.1	Certificate of Permanent Establishment - one time	[Y / N]
4.2	Certificate indicating the Number of Days of Stay in India - during financial year - every time	[Y / N]
4.3	Tax Residency Certificate	[Y / N]
4.4	Indian PAN No	[Y / N]

*** Mention service tax category on the invoice if service tax is applicable on service vendor invoice.
(As per legal requirement).**



VENDOR BILL FORWARDING NOTE

Purchase Order No	
Vendor Name	
Vendor No	
Bill No	
Bill Date	
Bill Amount	
User Department	
Contact Person in User Depart.	
Contact No	

To,
Delhi International Airport Limited
New Udaan Bhawan,
Opposite Terminal 3, Indira Gandhi International Airport,
New Delhi-110037

Subject:- GST Registration Details

The details pertaining to State-wise GSTIN obtained and HSN/SAC codes are as below:

GMR Present Vendor Code	Vendor GSTN No.	Name of Entity as registered with GSTN	State/Union Territory	GST Principle Supply full Address	Goods/Services Description	HSN/SAC Code

We certify that above details are true and correct as per GST registration acknowledgement (as attached).

Yours Sincerely,

For, _____



Authorized Signatory